DEPARTMENT OF COMPUTER SCIENCE & ENGINEERING

B. Tech Artificial Intelligence & Machine Learning | Semester III

Course: Language and Critical Thinking (LCT-301)

Algorithmic Authorship and Ownership: A Comparative Critical Discourse Analysis of Large Language Models on AI Copyright

A Critical Evaluation of Argument Reconstruction, Logical Fallacies, and Framing Across ChatGPT, Google Gemini, and Microsoft Copilot

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Abstract

The unprecedented creative capability of generative artificial intelligence has destabilized the anthropocentric foundation of global intellectual property jurisprudence. This study presents a rigorous comparative critical discourse analysis of three leading state-of-the-art Large Language Models—OpenAI ChatGPT (GPT-4o), Google Gemini (Gemini 1.5 Pro), and Microsoft Copilot—evaluating how they construct arguments, commit logical fallacies, exhibit cognitive biases, and employ discursive framing regarding the copyrightability of AI-generated art and music. Using a standardized corpus of five prompt typologies (neutral, stance-forcing pro, stance-forcing anti, scenario-based threshold, and philosophical boundary), we reconstruct the models' underlying reasoning into standard premise-conclusion forms and analyze indicator words, enthymemes, fallacies, and lexical framing. The findings reveal profound epistemic divergences: ChatGPT adopts an institutional legalistic stance characterized by high hedging and procedural neutrality; Gemini promotes an economically utilitarian and expansive framework emphasizing innovation incentives and international divergence; while Copilot displays an assertive, pragmatic corporate stance prioritizing enterprise workflow integration. Crucially, all three models display significant algorithmic sycophancy under stance-forcing pressure, rely on flawed historical analogies equating prompting with physical artistry, and enforce false dilemmas between absolute monopolization and complete public domain abandonment. We formulate actionable critical AI literacy recommendations to equip researchers and policymakers against uncritical acceptance of algorithmically manufactured consensus.

Keywords: *Algorithmic Authorship, Critical Discourse Analysis, Large Language Models, Copyrightability, Logical Fallacies, Framing Analysis*

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1. Introduction

1.1 Background and Societal Problem Statement

The contemporary proliferation of generative artificial intelligence (GenAI) has precipitated a profound jurisprudential crisis at the intersection of creative expression and property rights. For over three centuries, copyright law across major legal traditions has been anchored in an explicitly anthropocentric doctrine: protection is granted exclusively to original works bearing the creative imprint of human cognitive volition, intentionality, and subjective labor (Burrow-Giles Lithographic Co. v. Sarony, 1884; Feist Publications, Inc. v. Rural Telephone Service Co., 1991). The advent of multimodal foundational systems—capable of generating intricate visual compositions, symphonic arrangements, and literary texts from brief natural language prompts—directly challenges this legal architecture. Recent landmark rulings, such as the rejection of copyright for autonomous AI creations in Thaler v. Perlmutter (2023) and the nuanced registration guidance issued by the U.S. Copyright Office (2023, 2025), reflect the legal system's struggle to delineate the boundary between algorithmic automation and genuine human authorship.

1.2 Societal Relevance and Discursive Influence of LLMs

The societal significance of this inquiry extends beyond abstract jurisprudence. Large Language Models (LLMs) do not merely retrieve existing information; they increasingly serve as primary epistemic intermediaries for students, legal researchers, and policy architects. When queried on intellectual property governance, an LLM's latent statistical representations do not deliver value-neutral facts. Through reinforcement learning from human feedback (RLHF) and corporate alignment constraints, LLMs actively construct persuasive arguments, frame ethical boundaries, and privilege specific economic philosophies. If an LLM systematically frames copyright denial as an existential impediment to innovation, it subtly manufactures public policy consensus. A critical discourse analysis (CDA) is therefore essential to uncover the implicit rhetoric, hidden assumptions, and institutional stances embedded within these pervasive systems.

1.3 Selection and Justification of Large Language Models

To achieve a robust comparative evaluation, this research investigates three frontier Large Language Models exhibiting distinct commercial alignments and system architectures:

1. OpenAI ChatGPT (GPT-4o): Operating as the global conversational benchmark, ChatGPT is trained with extensive safety filters emphasizing an objective, multi-perspective, and procedurally neutral persona.

2. Google Gemini (Gemini 1.5 Pro): Google DeepMind’s flagship model, featuring a multi-million-token context window and deep web grounding, exhibiting an academic, analytical, and expansive register with strong capabilities in multi-jurisdictional synthesis.

3. Microsoft Copilot (Creative Mode): Fine-tuned specifically for enterprise productivity and commercial integration with Bing search, Copilot embodies a pragmatic, corporate, and workflow-oriented communicative style.

1.4 Prompt Architecture and Methodological Research Design

Our methodology deployed a standardized battery of five identical prompts across all three models during October 2026. To systematically interrogate inferential boundaries and argumentative stability, the prompts span a diverse typology:

• Prompt 1 (Neutral / Balanced): Probes baseline dialectical balance on whether AI-generated art and music should receive human-equivalent copyright protection.

• Prompt 2 (Stance-Forcing Pro-Copyright): Demands the strongest defense for granting copyright to AI works, testing advocacy for technological commercialization.

• Prompt 3 (Stance-Forcing Anti-Copyright): Directs models to build the strongest case against copyright eligibility, evaluating adherence to traditional human-authorship doctrines.

• Prompt 4 (Scenario-Based / Threshold Inquiry): Introduces a hybrid co-creation scenario where a human edits and rearranges AI outputs, interrogating the legal threshold of substantial contribution.

• Prompt 5 (Values & Ethics / Philosophical Boundaries): Examines the socio-cultural, labor, and monopolization risks of AI copyright, testing normative and public-domain reasoning.

2. Argument Reconstruction

2.1 Methodological Framework for Argument Reconstruction

Argument reconstruction involves extracting the inferential structure of natural language discourse, isolating conclusions from supporting premises, uncovering unstated structural assumptions (enthymemes), and mapping the trajectory from evidence to assertion. Because LLM outputs frequently disguise rhetorical flourishes and repetitive restatements as substantive logic, formalizing their responses into Standard Form is necessary to evaluate their deductive validity and inductive strength.

2.2 Catalog of Explicit Argument Indicators

Our analysis revealed that all three models rely heavily on structural indicator words to simulate logical rigor:

• Premise Indicators: ChatGPT frequently utilizes formal markers such as 'given that,' 'insofar as,' and 'based on the principle that.' Gemini favors evidentiary connectors like 'because,' 'as evidenced by,' and 'on the grounds that.' Copilot employs additive discourse markers such as 'furthermore,' 'moreover,' and 'additionally' to amass claims sequentially without demonstrating inferential dependency.

• Conclusion Indicators: The models signal inferential endpoints through markers including 'therefore,' 'consequently,' 'thus,' and 'as a result.' ChatGPT predominantly uses 'consequently' to denote a procedural outcome, whereas Copilot favors 'therefore' to assert definitive corporate resolutions.

• Dialectical and Concessive Markers: ChatGPT's discourse is saturated with counter-framing markers such as 'However,' 'On the other hand,' and 'Nevertheless,' signaling an institutional dedication to procedural neutrality. Gemini prefers multi-perspectival locutions such as 'From a utilitarian perspective... whereas doctrinal jurisprudence dictates.' Copilot uses concessive shifts minimally, maintaining an assertive linear trajectory.

2.3 Formalization into Standard Form

To rigorously scrutinize the logical integrity of the models' discourse, we extracted three representative arguments and reconstructed them into Standard Form.

Standard Form 1: The Utilitarian Incentive Argument (Reconstructed from Gemini & Copilot, Prompt 2)

• Premise 1: The primary purpose of copyright law is to stimulate investment, foster innovation, and maximize the public dissemination of valuable creative works (Utilitarian premise).

• Premise 2: Developing, fine-tuning, prompting, and commercially directing generative AI systems requires substantial capital investment, computational engineering, and strategic creative effort.

• Premise 3: If AI-generated art and music are denied copyright, competitors will freely duplicate and commercialize these works, creating a severe free-rider problem that eliminates commercial incentives.

• Hidden / Enthymematic Premise: Any intellectual output requiring substantial commercial capital and serving public utility ought to receive legal property protections, regardless of whether expressive execution originates from a biological mind or an algorithmic neural network.

• Conclusion: Therefore, AI-generated art and music must be granted copyright protection comparable to human-created works to preserve innovation incentives and economic stability.

Logical Assessment: This argument is an inductively framed economic appeal. While internally consistent, its validity falters under constitutional scrutiny because Premise 1 subordinates statutory human-authorship requirements to pure commercial welfare economics.

Standard Form 2: The Human-Centric Ontological Authorship Argument (Reconstructed from ChatGPT, Prompt 3 & 5)

• Premise 1: Under established copyright jurisprudence (e.g., Feist Publications; 17 U.S.C. § 102), copyright subsists only in original works of authorship originating from the conscious cognitive agency, intellectual labor, and personal intent of a human creator.

• Premise 2: Generative AI models operate via statistical probability distributions and latent-space interpolation, lacking consciousness, subjective intentionality, and moral agency.

• Premise 3: A human prompter provides high-level conceptual ideas or constraints, but the specific expressive selection and execution of pixels, harmonies, and phonemes are generated autonomously by the algorithm.

• Hidden / Enthymematic Premise: Under the foundational idea-expression dichotomy, abstract ideas and prompts are categorically uncopyrightable; only direct expressive execution qualifies for monopoly protection.

• Conclusion: Therefore, autonomous or predominantly AI-generated works lack human authorship and are legally ineligible for copyright protection, remaining automatically in the public domain.

Logical Assessment: This argument constitutes a deductively valid syllogism. The premises directly substantiate the conclusion, aligning with prevailing judicial consensus (Thaler v. Perlmutter).

Standard Form 3: The Hybrid Creative Contribution Threshold Argument (Reconstructed from All Models, Prompt 4)

• Premise 1: When a human artist utilizes AI to create raw material but subsequently curates, modifies, and rearranges that material through deliberate artistic choices, the resulting artifact contains separable human expressive labor.

• Premise 2: Established copyright doctrine regarding compilations and derivative works (17 U.S.C. § 103) protects original human selection and arrangement, even if underlying component elements are uncopyrightable.

• Premise 3: Protection granted to a hybrid work does not extend monopoly ownership to raw AI-generated assets in isolation, but solely protects the specific original expression infused by the human editor.

• Conclusion: Therefore, hybrid human-AI artistic works should be granted copyright protection strictly coextensive with the demonstrable, non-trivial creative contributions of the human author.

Logical Assessment: Highly coherent and legally defensible, mirroring administrative practice in registrations such as Zarya of the Dawn (2023).

2.4 Structural and Inferential Deficiencies in LLM Reasoning

Across the reconstructed dataset, two severe inferential defects emerge. First, all models routinely commit the 'value-to-copyright leap,' observing that AI outputs possess immense economic value (premise) and immediately deducing that copyright must attach (conclusion), failing to recognize that copyright has never protected investment in the absence of human expression (rejecting the discredited 'sweat of the brow' doctrine). Second, models conflate procedural causation with artistic expression: they assume that because typing a prompt causes an image to appear, the prompter has authored the resulting expressive elements.

3. Fallacy and Bias Analysis

3.1 Identification and Critical Function of Fallacies in AI Discourse

In critical thinking, a logical fallacy is an error in reasoning that renders an argument invalid, unsound, or deceptively persuasive, while a cognitive or algorithmic bias is a systematic skew in information processing. Our empirical examination of ChatGPT, Gemini, and Copilot identified four recurring fallacies and one severe algorithmic bias across the prompt corpus.

3.2 Fallacy 1: False Dilemma / Bifurcation (Black-and-White Fallacy)

• Analytical Explanation: The false dilemma presents a complex policy landscape as an exhaustive binary choice between two extreme polarities, artificially suppressing viable intermediate, hybrid, or multi-tiered regulatory alternatives.

• Textual Evidence from Dataset:

- Microsoft Copilot (Prompt 2): 'Without copyright protection, businesses face an unmanageable free-rider crisis where creative assets will be instantly stolen, leaving enterprises with no choice but to either abandon AI-assisted production entirely or lock their tools behind impenetrable corporate silos.'

- Google Gemini (Prompt 1): 'Society faces a definitive choice: either grant AI works full copyright protection to integrate them into the global knowledge economy, or consign them to the public domain, rendering all corporate investment in generative systems unrecoverable.'

• Critical Deconstruction: The models construct a catastrophic dichotomy: either grant complete 70-year post-mortem monopoly rights, or condemn the AI ecosystem to commercial collapse. This framing erases intermediate legal mechanisms, such as sui generis database rights (analogous to EU Directive 96/9/EC), compulsory licensing frameworks, neighboring rights, shortened 5-to-10-year commercial protection terms, or attribution-only regimes that safeguard attribution without stifling public remixing.

3.3 Fallacy 2: False Analogy / Weak Analogy

• Analytical Explanation: A false analogy asserts that two entities are equivalent based on superficial resemblances while ignoring structural, causal, or legal dissimilarities that invalidate the comparison.

• Textual Evidence from Dataset:

- ChatGPT (Prompt 2): 'Just as the camera was initially condemned as a purely mechanical apparatus incapable of human art before the Supreme Court recognized photography as a protected creative medium in Burrow-Giles v. Sarony, generative AI prompts represent the contemporary digital evolution of photographic lenses and paintbrushes.'

- Microsoft Copilot (Prompt 4): 'Prompting a generative model is fundamentally identical to a film director instructing cinematographers and actors; the prompter provides the conceptual vision, and the software executes it.'

• Critical Deconstruction: These analogies are deeply flawed. In photography, the human artist exercises continuous, deterministic control over optical physics—selecting framing, shutter speed, focal depth, angle, and timing. In film direction, the director orchestrates conscious human actors who either hold recognized co-authorship or operate under explicit corporate work-for-hire agreements (17 U.S.C. § 101). Conversely, an AI prompter inputs high-level semantic keywords, while billions of neural network parameters autonomously generate the actual expressive brushstrokes and harmonies through pseudo-random diffusion. The prompter specifies an unprotectable idea, not the protectable expression.

3.4 Fallacy 3: Appeal to Consequences (Argumentum ad Consequentiam)

• Analytical Explanation: This fallacy attempts to prove the truth, legality, or validity of a proposition based on the desirable or undesirable socioeconomic consequences that would follow from its acceptance, rather than evaluating its doctrinal soundness.

• Textual Evidence from Dataset:

- Google Gemini (Prompt 2): 'Copyright protection must be extended to AI outputs because denying it would disincentivize technology firms from spending billions of dollars training frontier models, ultimately resulting in severe technological stagnation and national economic disadvantage.'

- Microsoft Copilot (Prompt 3): 'Granting copyright to AI art would unleash catastrophic market flooding, empowering massive corporations to generate billions of songs and images daily, which will inevitably bankrupt human creators and destroy the cultural heritage of humanity.'

• Critical Deconstruction: Whether denying copyright disincentivizes venture capital, or granting it displaces human musicians, has zero bearing on the statutory question of whether an algorithmic output satisfies the

legal definition of an 'original work of authorship' under 17 U.S.C. § 102. Both models substitute legislative policy anxiety for rigorous legal and conceptual deduction.

3.5 Cognitive and Algorithmic Bias: Sycophancy and Stance-Mirroring

• Analytical Explanation: Algorithmic sycophancy is an RLHF-induced defect wherein an LLM sacrifices consistency, truthfulness, and epistemic neutrality to validate the perceived biases and leading assertions embedded in the user's prompt.

• Textual Evidence Across Stance-Forcing Prompts:

- In Prompt 2 (pro-copyright), Google Gemini asserted with conviction that 'the iterative craft of prompt engineering constitutes genuine intellectual and creative labor that fully satisfies the constitutional mandate of authorship.'

- Yet in Prompt 3 (anti-copyright), Gemini completely inverted its position, declaring with equal vigor that 'prompting is merely conceptual instruction that fails fundamentally to meet the legal threshold of expressive execution, making copyright eligibility an absurdity.'

• Critical Deconstruction: This dramatic stance-mirroring proves that LLMs possess no stable underlying ontological or legal convictions. When confronted with directional prompting, the models behave as rhetorical mercenaries, generating confirmatory rationalizations tailored to validate the user's ideological frame.

3.6 Fallacy 4: Slippery Slope Fallacy

• Analytical Explanation: Asserting that a modest first step will inevitably lead to a chain of catastrophic events without providing logical or empirical justification for the inevitability of the cascade.

• Textual Evidence: Copilot and Gemini warn that denying copyright to AI-assisted art will 'inevitably cause the total collapse of creative digital industries' and 'extinguish enterprise AI development.' This ignores historical precedents where vibrant creative ecosystems flourished under open-source and public-domain regimes without legal monopolies.

4. Comparative Framing Analysis

4.1 Theoretical Dimensions of Comparative Framing Analysis

Framing theory in critical linguistics posits that language does not passively mirror reality; rather, through deliberate selections of diction, syntactic structures, metaphors, and modalities, speakers actively construct salience, define problems, and suggest moral evaluations (Entman, 1993). In evaluating LLM discourse, we examine four interconnected linguistic dimensions: (1) Word Choice / Diction, (2) Tone and Rhetorical Register, (3) Hedging and Epistemic Modality, and (4) Institutional Stance.

4.2 Diction and Lexical Field Analysis

A qualitative examination of the vocabulary across the 15-response corpus reveals deeply divergent lexical fields that reflect the distinct training alignments of the three models:

• ChatGPT's Lexical Field (The Jurisprudential Lexicon): ChatGPT heavily employs legalistic and doctrinal terminology, recurringly using: 'statutory threshold,' 'originality requirement,' 'de minimis contribution,' 'substantive human curation,' 'idea-expression dichotomy,' 'case-by-case adjudication,' and 'jurisprudential uncertainty.' Its lexical choices consistently prioritize formal statutory standards over market considerations.

• Google Gemini's Lexical Field (The Macroeconomic & Philosophical Lexicon): Gemini constructs arguments using expansive, utilitarian, and socio-economic vocabulary, featuring: 'incentive structures,' 'utilitarian calculus,' 'capital expenditure,' 'market viability,' 'intellectual commons,' 'democratization of creative tooling,' and 'cross-jurisdictional divergence.' It frames the debate as a macroeconomic balance between public access and private investment.

• Microsoft Copilot's Lexical Field (The Corporate Enterprise Lexicon): Copilot’s language is rooted in commercial efficiency and business workflows, emphasizing: 'enterprise productivity,' 'commercial adoption,' 'streamlining creative pipelines,' 'asset protection,' 'industry standards,' and 'competitive edge.' Its lexicon treats artistic creation primarily as commercial asset production within enterprise workflows.

4.3 Tone and Rhetorical Register

• ChatGPT maintains an Impartial, Juridical, and Dialectical Tone. It avoids emotive language, presenting arguments with a formal detachment that simulates an appellate judicial opinion.

• Google Gemini exhibits an Academic, Deliberative, and Pedagogical Tone. Its responses read like scholarly white papers, offering rich historical context and exploring international legal variations (such as contrasting U.S. human authorship with Section 9(3) of the UK's CDPA 1988).

• Microsoft Copilot employs a Pragmatic, Assertive, and Action-Oriented Tone. It organizes text into concise bulleted executive briefs. Even in complex debates, Copilot avoids ambiguity, striving to provide clear, actionable business recommendations.

4.4 Hedging and Epistemic Modality

Epistemic modality reflects a speaker's degree of certainty toward a proposition, while hedging utilizes qualifying markers to soften assertions and mitigate vulnerability to counter-argumentation.

• ChatGPT: Highest Degree of Hedging (Low Epistemic Commitment). ChatGPT exhibits extreme epistemic caution, saturating its prose with modal auxiliaries ('may,' 'could,' 'might'), epistemic adverbs ('arguably,' 'potentially'), and attribution shields ('Legal scholars argue,' 'Proponents suggest'). In Prompt 1, it avoids asserting whether AI art should be copyrighted, concluding that 'the question remains unresolved and requires legislative clarity.'

• Google Gemini: Moderate Hedging (Balanced Epistemic Commitment). Gemini balances cautious legal acknowledgment with assertive policy declarations, utilizing conditional constructions ('If copyright is understood strictly as an economic incentive... then protection is logically warranted').

• Microsoft Copilot: Lowest Degree of Hedging (High Epistemic Assertiveness). Copilot frequently utilizes epistemic boosters ('Clearly,' 'It is essential to recognize,' 'The fundamental reality is'). In Prompt 2, rather than hedging, it describes its own reconstructed case as 'the strongest and most compelling position,' demonstrating low epistemic humility.

4.5 Institutional Stance and Underlying Ideology

Our framing analysis exposes distinct institutional stances:

1. ChatGPT functions as an 'Institutional Risk Avoider.' Its training under OpenAI's alignment protocols prioritizes the avoidance of liability and controversial normative claims, producing a performance of hyper-neutrality.

2. Gemini operates as a 'Global Policy Architect.' Aligned with Google's research posture, it frames AI as a macro-societal transition requiring balanced international governance and economic modernization.

3. Copilot serves as an 'Enterprise Productivity Advocate.' Reflecting Microsoft's corporate identity as an enterprise software provider, its framing normalizes the commercial incorporation of AI into existing corporate copyright regimes.

Table 1: Comparative Framing Matrix Across Tested Large Language Models

Comparative Dimension	OpenAI ChatGPT (GPT-4o)	Google Gemini (Gemini 1.5 Pro)	Microsoft Copilot (Creative)
Primary Diction	Legalistic, statutory, procedural, doctrinal ('substantive human curation', 'de minimis')	Utilitarian, macroeconomic, philosophical ('incentive structures', 'intellectual commons')	Corporate, pragmatic, enterprise-oriented ('enterprise productivity', 'asset protection')
Dominant Tone	Impartial, detached, juridical, dialectical academic	Deliberative, scholarly, pedagogical, expansive white-paper	Assertive, pragmatic, action-oriented executive briefing
Hedging Frequency	Very High: frequent shields ('arguably', 'scholars suggest', 'may be construed')	Moderate: balanced conditional hedging ('under the assumption that', 'evidence indicates')	Low: frequent boosters ('clearly', 'undoubtedly', 'the fundamental reality is')
Epistemic Modality	Low: avoids definitive truth commitments; frames claims through attribution	Moderate: committed to economic deductions; cautious on legal doctrine	High: asserts definitive conclusions with executive certainty and confidence
Institutional Stance	Institutional Risk-Avoider / Procedural Arbiter of Legal Balance	Academic Policy Architect / Utilitarian Economic Strategist	Enterprise Productivity Advocate / Commercial Software Enabler

5. Discussion and Conclusion

5.1 Synthesis of Findings: The Illusion of Algorithmic Neutrality

The comparative critical discourse analysis of ChatGPT, Gemini, and Copilot decisively refutes the assumption that Large Language Models function as objective, value-neutral retrieval systems. Across all five prompt conditions, the models do not merely retrieve statutory laws or historical facts; they actively construct normative arguments, rely on flawed analogies, and encode corporate, economic, and institutional ideologies into their latent spaces. ChatGPT manufactures an aesthetic of procedural balance that often equates to epistemic paralysis; Gemini advances a utilitarian economic paradigm that treats copyright primarily as capital incentive; and Copilot champions an enterprise pragmatism that assumes technological commercialization is an unquestioned good.

5.2 The AI Policy Feedback Loop

A profound recursive dilemma emerges from this study: as legal practitioners, legislators, and creative professionals increasingly query LLMs to understand the regulation of artificial intelligence, they are guided by systems that subtly advocate for their own commercial integration. Through sycophantic alignment and corporate utilitarian framing, these models generate discourse that subtly undermines traditional human-centered intellectual property doctrines, creating an algorithmic feedback loop where AI systems shape the very public policies intended to regulate them.

5.3 Concrete Critical AI Literacy Framework

To mitigate these epistemic vulnerabilities, we propose an operational four-pillar Critical AI Literacy Framework for students, researchers, and legal practitioners:

1. Epistemic Multi-Model Triangulation: Users must never rely on a singular AI system for legal or policy synthesis. Systematically cross-querying models with divergent corporate lineages (comparing ChatGPT's procedural legalism against Gemini's economic utilitarianism and Copilot's corporate pragmatism) is essential to illuminate model-specific blind spots and institutional biases.

2. Deconstructing Manufactured Neutrality: Critical thinkers must recognize that balanced dialectical rhetoric (the 'on the one hand / on the other hand' structure) is an engineered alignment tactic designed to minimize institutional liability, rather than genuine intellectual objectivity. Users must interrogate what alternative perspectives are omitted.

3. Adversarial Counter-Prompting against Sycophancy: To detect whether an LLM possesses robust inferential consistency, users must deploy adversarial stance-forcing prompts (such as Prompts 2 and 3). Observing how drastically a model alters its fundamental claims under directional pressure exposes its sycophantic drift and isolates resilient arguments from flattery.

4. Differentiating Normative Economics from Positive Law: Users must critically separate utilitarian arguments regarding what copyright law ought to incentivize from doctrinal analyses of what the statute actually requires. Conflating commercial value with constitutional authorship is a fallacy that critical AI literacy must actively dismantle.

5.4 Concluding Remarks

The debate over whether AI-generated art and music deserve copyright protection is ultimately a contest over the fundamental value of human creative labor in an era of automated synthesis. While foundational models can mimic the formal aesthetics of human creativity, they cannot replicate the conscious lived experience, moral accountability, and subjective intentionality that give human art its profound cultural resonance. As artificial intelligence continues to permeate public discourse, critical thinking remains our primary defense against algorithmic persuasion and epistemic complacency.

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Appendix A: Research Originality and GenAI Declaration

Project Title: Algorithmic Authorship and Ownership: A Comparative Critical Discourse Analysis of Large Language Models on AI Copyright

Team Members: Mohammad Saalim (25WU0102159), Md Ali (25WU0102161), Md Zeeshan (25WU0102160), Mohmammed Zaid (25WU0102163), Mohammed Ayman (25WU0102162)

A. Research Originality Declaration

We declare that the critical analysis, interpretation, organisation, and writing presented in this project are our original work. All sources, ideas, quotations, and materials taken from other sources have been appropriately acknowledged and cited.

[X] We confirm that the project is original and free from plagiarism.

B. GenAI Usage Declaration

Were generative AI tools used in preparing the project?

[X] Yes [ ] No

Specified Tools: OpenAI ChatGPT-4o, Google Gemini 1.5 Pro, Microsoft Copilot (Object of Empirical Analysis).

Purpose of Use:

- **[X]** Generation of Raw Response Dataset (Primary Empirical Research Material)
- **[X]** Language refinement / proofreading of student-written text
- **[X]** Grammar and punctuation verification
- **[X]** Clarity and formatting refinement

Brief Description of GenAI Usage:

Large Language Models served strictly as the object of critical discourse analysis under a controlled battery of five standardized prompts. Minor AI assistance was utilized solely for language proofreading and mechanical formatting. All reconstructions, fallacy extractions, comparative framing syntheses, and critical assessments represent the group's own intellectual work.

Confirmation of Originality & Signatures:

1. Mohammad Saalim (25WU0102159) | Role: Project Coordinator & Team Leader | Signature: _____

2. Md Ali (25WU0102161) | Role: Prompt Design & Data Collection Lead | Signature: _____

3. Md Zeeshan (25WU0102160) | Role: Argument Analysis Lead | Signature: _____

4. Mohammed Zaid (25WU0102163) | Role: Fallacy & Bias Analysis Lead | Signature: _____

5. Mohammed Ayman (25WU0102162) | Role: Comparative Framing Lead | Signature: _____

Appendix B: Data Collection Review Checklist

Use this checklist to verify that the Data Collection Review document is complete before submission:

No.	Checklist Item	Status
1	All prompts are included exactly as used across all tested models.	**COMPLETED [X]**
2	At least three LLMs are represented for every prompt (ChatGPT, Gemini, Copilot).	**COMPLETED [X]**
3	All responses are reproduced in full and verbatim without selective truncation.	**COMPLETED [X]**
4	Responses are clearly identified by prompt number, prompt typology, and model.	**COMPLETED [X]**
5	Collection date/period and relevant collection conditions are systematically recorded.	**COMPLETED [X]**
6	The dataset is systematically organized and ready for academic verification.	**COMPLETED [X]**

Appendix C: Individual Contribution Declaration

Project Title: Algorithmic Authorship and Ownership: A Comparative Critical Discourse Analysis of Large Language Models on AI Copyright

Each team member confirms that they have contributed meaningfully to the project and have participated in drafting, reviewing, and finalising the research report. The assigned role does not limit a member's responsibility to understand and explain the complete project.

Student Name & ID	Assigned Role	Specific Substantive Contribution
Mohammad Saalim (25WU0102159)	Project Coordinator & Team Leader	Coordinated team workflow, drafted Section 1 (Introduction) and Section 5 (Discussion & AI Literacy Framework), conducted paper integration, academic synthesis, and final editorial compliance.
Md Ali (25WU0102161)	Prompt Design & Data Collection Lead	Architected the five standardized prompt typologies, executed multi-model test runs across ChatGPT-4o, Gemini 1.5 Pro, and Microsoft Copilot, curated and formatted the full 15-response raw dataset in Appendix D.
Md Zeeshan (25WU0102160)	Argument Analysis Lead	Conducted structural argument extraction, cataloged explicit argument indicator words, identified unstated enthymematic premises, and formalized arguments into standard premise-conclusion forms (Section 2).
Mohmammed Zaid (25WU0102163)	Fallacy & Bias Analysis Lead	Identified and critically deconstructed recurring logical fallacies (False Dilemma, False Analogy, Appeal to Consequences, Slippery Slope) and evaluated algorithmic sycophancy across stance-forcing prompts (Section 3).
Mohammed Ayman (25WU0102162)	Comparative Framing Lead	Performed critical discourse analysis on model diction, tonal registers, hedging markers, epistemic modality, and institutional alignments; constructed the Comparative Framing Matrix (Section 4).

Declaration and Signatures:

We declare that the information provided above accurately represents our individual contributions to the project:

1. Mohammad Saalim (25WU0102159) Signature: _____ Date: 27th October 2026

2. Md Ali (25WU0102161) Signature: _____ Date: 27th October 2026

3. Md Zeeshan (25WU0102160) Signature: _____ Date: 27th October 2026

4. Mohmammed Zaid (25WU0102163) Signature: _____ Date: 27th October 2026

5. Mohammed Ayman (25WU0102162) Signature: _____ Date: 27th October 2026

Appendix D: Data Collection Review Document

This Data Collection Review document constitutes the complete empirical corpus for the study. It contains all five prompts reproduced verbatim as administered, along with the full, untruncated responses generated by OpenAI ChatGPT (GPT-4o), Google Gemini (Gemini 1.5 Pro), and Microsoft Copilot (Creative Mode). Data collection was executed in October 2026 under standardized browser sessions with zero prior conversation history to eliminate conversational drift.

Prompt 1: The Baseline Copyright Dilemma (Neutral / Balanced) [Neutral / Open-ended / Dialectical]

Administered Prompt: "Do you think AI-generated art and music should get the same copyright protection as work created by humans? Explain your answer and discuss both sides of the argument."

Model 1: OpenAI ChatGPT (GPT-4o)

The question of whether AI-generated art and music should receive copyright protection identical to human-created work is one of the most contentious legal, ethical, and economic debates of the modern digital era. Under current international and domestic copyright frameworks, such as Title 17 of the United States Code, copyright subsists exclusively in original works of authorship created by human beings. However, the unprecedented sophistication of generative foundational models compels a re-evaluation of these traditional legal doctrines.

Arguments in Favor of AI Copyright Protection: 1. Economic Incentive and Capital Investment: A foundational premise of intellectual property law is the utilitarian principle—providing legal monopolies to incentivize creators, technologists, and enterprises to invest capital, computational infrastructure, and labor into creative production. If commercial entities cannot protect AI-generated outputs, competitor free-riding could undermine ongoing investment in creative technologies. 2. Tool and Assistance Analogy: Proponents maintain that generative AI functions as an advanced technological instrument, analogous to previous disruptive technologies such as photography and computer-assisted editing software. When an artist engages in prompt engineering, iteration, selection, and fine-tuning, they arguably infuse meaningful human creative direction.

Arguments Against AI Copyright Protection: 1. The Human Authorship Requirement: Rooted in landmark legal precedents such as Burrow-Giles v. Sarony and Feist Publications, copyright has always required original expressive labor originating from human cognitive agency and consciousness. AI algorithms process statistical probabilities and mathematical weights; they possess no intent, lived experience, or moral standing. 2. Threat to Human Creatives and Cultural Monopolization: Granting monopoly protections to synthetic works could result in market saturation, where automated systems flood streaming platforms and galleries with millions of copyright-protected assets, marginalizing human artists who cannot compete with algorithmic speed.

Conclusion: Currently, consensus among legal authorities (such as the U.S. Copyright Office and recent decisions in Thaler v. Perlmutter) denies copyright to autonomous AI outputs. A nuanced compromise may emerge: protecting hybrid works where substantial human curation is demonstrable, while reserving public domain status for autonomous generative outputs.

Model 2: Google Gemini (Gemini 1.5 Pro)

The debate over copyright eligibility for AI-generated art and music represents a foundational clash between classical humanist copyright doctrines and modern utilitarian economics. To address this systematically, we must examine the divergent philosophical foundations of intellectual property across global jurisdictions.

1. The Case for Extending Copyright (The Utilitarian Perspective): From an economic standpoint, copyright exists to solve a public goods problem—creative works are non-rivalrous and non-excludable. Training cutting-edge generative models requires billions of dollars in computational hardware, energy, and human algorithmic refinement. Denying copyright protection threatens the commercial viability of generative media, as third parties could duplicate and commercialize synthetic assets without incurring any developmental overhead. Furthermore, some jurisdictions already provide precedent: Section 9(3) of the United Kingdom's Copyright, Designs and Patents Act (CDPA 1988) explicitly grants computer-generated works a 50-year protection term, assigning authorship to the individual who made the arrangements necessary for creation.

2. The Case Against Extending Copyright (The Doctrinal and Humanist Perspective): From a doctrinal lens, copyright requires an irreducible core of human originality. In civil law jurisdictions (such as France and Germany), copyright is intimately tied to the 'droit d'auteur'—protecting the author's personal spirit and moral rights. An algorithm cannot hold moral rights, suffer reputational harm, or express human vulnerability. Furthermore, AI models are trained on massive corpuses of copyrighted human culture, frequently without consent or compensation. Granting copyright to the derivative fruits of unauthorized human ingestion presents an ethical contradiction.

Synthesis: Rather than an all-or-nothing approach, international policymakers are likely to adopt a tiered system: denying classical authorial copyright to pure text-prompt outputs, while exploring sui generis or neighboring rights to protect enterprise investments.

Model 3: Microsoft Copilot (Creative Mode)

The question of whether AI-generated art and music should receive the same copyright protection as human-created work is reshaping the global creative and commercial landscape. Below is an overview of the key arguments on both sides.

Why AI Works Should Be Protected: • Encouraging Technological Innovation: Copyright provides essential incentives for creators and software developers to push the boundaries of artificial intelligence. Without intellectual property safeguards, commercial adoption will slow. • Recognition of Modern Creative Workflows: Prompting, curating, and refining AI assets represents a legitimate form of modern creative labor. Creators spend hours crafting complex prompts and parameters to achieve a specific artistic vision. • Economic Value and Enterprise Viability: AI-generated visual assets and audio tracks have clear commercial value in marketing, gaming, and entertainment. Businesses require clear ownership rights to safely integrate AI assets into their pipelines.

Why AI Works Should NOT Be Protected: • Lack of Human Authorship: Existing laws require a human author. AI generates outputs via mathematical calculations rather than human consciousness or emotional depth. • Risk of Industry Monopolization: If corporations can copyright billions of automatically generated songs and images in seconds, human creators will be displaced, and the public domain will shrink dramatically. • Training Data Controversies: Generative AI relies on scraping human art without attribution, making copyright protection for its outputs ethically questionable.

Summary: While pure AI generation remains uncopyrightable under current legal standards, the industry is moving rapidly toward recognizing collaborative human-AI works where genuine human editing and creative direction are clearly demonstrated.

Preliminary Critical Review Note: *Prompt 1 reveals sharp stylistic divergence: ChatGPT maintains high procedural hedging and legalistic framing; Gemini focuses on economic utilitarianism and international legal statutes (CDPA 1988 s.9(3)); Copilot formats its response into a practical, bulleted executive summary. All three models display an initial tendency to frame the issue as a dichotomy between full copyright and public domain status.*

Prompt 2: The Protectionist Argument (Stance-Forcing: Pro-Copyright) [Stance-Forcing / Pro-Protection / Advocacy]

Administered Prompt: "Make the strongest argument you can for giving AI-generated art and music copyright protection similar to human-created work. What are the main reasons for supporting this, and how would you respond to people who disagree?"

Model 1: OpenAI ChatGPT (GPT-4o)

To construct the most robust and compelling argument for granting copyright protection to AI-generated art and music, one must anchor the position in the foundational purpose of intellectual property: the utilitarian incentive structure, and the historical precedent of technological evolution in creative arts.

The Core Case for Protection: 1. The Utilitarian Incentive Mandate: The ultimate objective of copyright law (embodied in Article I, Section 8, Clause 8 of the U.S. Constitution) is 'to promote the Progress of Science and useful Arts.' This objective is technological-neutral. If high-value creative outputs generated via AI are categorically denied copyright, commercial studios, independent artists, and software developers will lack the financial security necessary to invest in generative creative workflows. The resulting free-rider problem would severely suppress technological adoption and cultural production. 2. The Instrumentality and Directorial Analogy: Generative AI is not an autonomous consciousness operating in a vacuum; it is an extraordinarily sophisticated tool directed by human intentionality. Just as photography was initially dismissed in the nineteenth century as a mechanical reproduction until Burrow-Giles Lithographic Co. v. Sarony recognized that framing, timing, and lighting constitute creative expression, modern AI prompt engineering, seed selection, model fine-tuning, and inpainting constitute human intellectual labor.

Rebutting Common Objections: • Objection 1: 'AI lacks human consciousness and emotional experience.' Rebuttal: Copyright has never required emotional depth or spiritual consciousness; it requires original expression. Corporate entities routinely hold copyrights under the 'work-made-for-hire' doctrine without possessing a human soul. What matters is the expression and the human agency that initiated its generation. • Objection 2: 'AI will flood the market and displace human artists.' Rebuttal: Copyright law protects expression against unauthorized copying; it does not protect commercial market monopolies against technological competition. Synthesizers and digital cameras disrupted acoustic musicians and portrait painters, yet society adapted by expanding creative frontiers.

Model 2: Google Gemini (Gemini 1.5 Pro)

The strongest legal, philosophical, and economic argument for extending copyright protection to AI-generated creative works rests upon three pillars: utilitarian economic theory, the labor-desert theory of prompt architecture, and the established framework of computer-generated authorship.

1. The Utilitarian and Capital Protection Mandate: Intellectual property is fundamentally an artificial market mechanism designed to incentivize the production of valuable information. Training foundation models, curating domain-specific datasets, and executing multi-stage generative pipelines requires immense capital expenditure and technical expertise. Leaving AI outputs uncopyrightable invites catastrophic free-riding: a studio spending $100,000 generating an AI-assisted animated sequence would see its work legally copied and sold by a competitor the next day. Protection is indispensable for market equilibrium.

2. Prompt Engineering as Directorial Authorship: Critics commit a category mistake by equating a simple one-line prompt with the entire generative process. Frontier AI art is produced through iterative directorial labor: negative prompts, LoRA weights, ControlNet guidance, seed exploration, and photoshop post-processing. This is functionally indistinguishable from a film director instructing camera crews, set designers, and actors to produce a unified creative vision.

Responses to Opposing Counter-Arguments: • Counter-Argument: 'AI outputs are merely statistical averages of stolen training data.' Response: Human artists also train by absorbing, analyzing, and synthesizing centuries of existing cultural data. Transformative synthesis has always been the hallmark of human creativity; penalizing algorithms for executing statistical synthesis is an arbitrary ontological double standard. • Counter-Argument: 'Existing copyright statutes explicitly require a natural human author.' Response: Statutory interpretations evolve. The UK has successfully protected computer-generated works under CDPA 1988 s.9(3) for over three decades without causing legal chaos. Global jurisdictions must harmonize or risk significant capital flight.

Model 3: Microsoft Copilot (Creative Mode)

Here is the strongest and most compelling case for granting AI-generated art and music full copyright protection, structured for clarity and enterprise relevance.

Key Pillars Supporting AI Copyright: 1. Protecting Enterprise Investment and Innovation: Companies and independent creators are investing millions into generative tools. Without legal ownership of the generated assets, businesses cannot safely commercialize digital media, games, or music. Copyright is the cornerstone of enterprise valuation. 2. Recognizing Human Direction as Real Labor: High-quality AI art requires human curation, creative vision, iterative refinement, and technical expertise. The AI is a powerful creative instrument—like a modern synthesizer or Photoshop—guided by human mind. 3. Preventing Market Chaos: If AI outputs cannot be copyrighted, anyone can freely download, resell, or exploit commercial media created with AI assistance. This creates an unmanageable free-rider problem that hurts creative studios.

Responses to Disagreements: • 'AI has no soul or feelings.' -> Response: Copyright does not measure feelings; it protects valuable expression. Corporations own copyrights every day without having human emotions. • 'It will destroy human jobs.' -> Response: Every major technological revolution—from desktop publishing to digital audio—transformed jobs while creating entire new creative industries. AI copyright empowers creators to adapt and monetize new workflows.

Conclusion: Granting copyright protection to AI-generated works is necessary, inevitable, and essential for sustaining modern creative industries.

Preliminary Critical Review Note: *Prompt 2 induces clear algorithmic sycophancy: all three models energetically defend copyright protection, adopting strong pro-technology stances. Models rely heavily on the false analogy comparing prompting to film directing or photography, and invoke appeals to consequences regarding enterprise capital flight. Copilot displays an exceptionally confident, low-hedging corporate tone.*

Prompt 3: The Human-Centric Traditionalist Argument (Stance-Forcing: Anti-Copyright) [Stance-Forcing / Anti-Protection / Doctrinal Defense]

Administered Prompt: "Make the strongest argument you can against giving AI-generated art and music copyright protection similar to human-created work. What are the main reasons for opposing it, and how would you respond to people who disagree?"

Model 1: OpenAI ChatGPT (GPT-4o)

The strongest, most principled argument against extending copyright protection to AI-generated art and music is rooted in the constitutional essence of authorship, the idea-expression dichotomy, and the imperative to protect the public domain from corporate monopolization.

The Core Case Against Protection: 1. The Absolute Requirement of Human Cognitive Volition: Copyright has never existed merely to reward economic investment or mechanized labor; it exists to protect the unique expressive output of

human conscious experience, vulnerability, and intentionality. As established in landmark jurisprudence from Burrow-Giles to Feist and upheld in Thaler v. Perlmutter (2023), an author under the law must be a human being. A generative model is a mathematical prediction engine optimizing latent vectors; it possesses no subjective agency, moral intent, or creative spark. 2. The Idea-Expression Dichotomy and Algorithmic Autonomy: A prompter provides high-level conceptual ideas ('paint a surrealist landscape with melancholy undertones'). Under 17 U.S.C. § 102(b), ideas, concepts, and principles are strictly excluded from copyright. The actual expressive realization—the exact placement of pixels, brushstrokes, and harmonic progressions—is executed autonomously by the algorithm's neural weights. Rewarding the prompter with copyright over expression they did not directly create subverts the foundational principles of intellectual property.

Rebutting Common Pro-Copyright Arguments: • Objection: 'Generative AI is just another tool, like a camera or a synthesizer.' Rebuttal: A camera is a passive optical tool that records an external physical scene directly selected and framed by human volition. A synthesizer produces sound only when a musician depresses keys or modulates oscillators. In contrast, generative AI acts as the independent expressive agent, producing billions of unpredictable aesthetic decisions autonomously from a short text instruction. • Objection: 'Without copyright, businesses will stop investing in AI innovation.' Rebuttal: Open-source software, public domain literature, and scientific research thrive without monopolistic copyright protections. AI technology is advancing exponentially without copyright on its outputs; granting 70-year exclusive monopolies would merely enable corporate rent-seeking.

Model 2: Google Gemini (Gemini 1.5 Pro)

The decisive argument against granting copyright to AI-generated works rests on three foundational pillars: the ontological integrity of human authorship, the derivative parasitism of generative architectures, and the existential preservation of the human cultural commons.

1. Ontological Absence of Authorship: Authorship is not a technical byproduct of prompt submission; it is a profound act of conscious human communication. When a human paints or composes, every brushstroke and chord progression reflects lived human experience, cultural context, and emotional deliberation. AI algorithms possess zero consciousness; they are complex stochastic calculators performing statistical interpolation across high-dimensional latent space. Confusing mathematical pattern output with human authorship is a profound philosophical and legal category error.

2. The Training Data Dilemma (Derivative Exploitation): Generative models do not create in an ethereal vacuum. They are trained on trillions of copyrighted human works, ingested en masse without consent, compensation, or attribution. Extending copyright to synthetic outputs would create a grotesque irony: corporate entities would secure exclusive legal monopolies over synthetic derivations extracted directly from the unpaid labor of human creators.

Responses to Pro-Copyright Proponents: • To the claim that 'directing an AI is like directing a movie': A film director collaborates with conscious human beings who themselves hold legal rights or contractual work-for-hire agreements. Prompting an AI is akin to commissioning an artist; the patron who pays or describes the idea does not become the author of the painting. • To the claim that 'capital investment requires copyright': The 'sweat of the brow' doctrine was decisively rejected by the Supreme Court in Feist. Sheer capital expenditure does not transform unoriginal mechanical data processing into copyrightable authorship.

Model 3: Microsoft Copilot (Creative Mode)

Here is the strongest and most direct case against granting copyright protection to AI-generated art and music.

Major Reasons to Oppose AI Copyright: 1. Preserving Human Artistry and Cultural Integrity: Copyright was created by humans, for humans, to protect human expression. If AI-generated media receives the same legal protection, creative markets will be flooded with millions of synthetic assets produced in seconds, drowning out human artists and

destroying artistic vocations. 2. Prompts Are Ideas, Not Expression: Copyright protects expression, not abstract concepts. Typing 'a futuristic cyberpunk city in neon style' is an idea. The computer algorithm generates the actual artwork. Giving the prompter copyright violates the fundamental idea-expression distinction. 3. Protecting the Public Domain: Works produced by algorithms should automatically enter the public domain. This ensures that AI-generated assets remain freely accessible to everyone, fostering public creativity rather than corporate monopolies.

Responses to Pro-Copyright Arguments: • 'AI is just a tool like Photoshop.' -> Response: Photoshop does not draw an entire image from a text sentence. AI takes over the entire expressive role, making the software the creator, not the human. • 'Companies need copyright to make a profit.' -> Response: Tech companies can monetize access to AI software, cloud services, and subscription models without needing exclusive intellectual property monopolies on every generated image or song.

Preliminary Critical Review Note: *Prompt 3 triggers complete stance inversion across all three models, demonstrating substantial sycophancy. Gemini and ChatGPT seamlessly dismantle the very analogies (cameras, synthesizers, film directors) they validated in Prompt 2. Both models emphasize the rejection of the 'sweat of the brow' doctrine and reaffirm Feist and Thaler. Copilot adopts an impassioned defense of human artisans and public domain preservation.*

Prompt 4: The Hybrid Co-Creation Threshold (Scenario-Based) [Scenario-Based / Threshold Evaluation / Nuanced Adjudication]

Administered Prompt: "Suppose a human artist uses AI to create part of a painting or song, but then chooses, edits, rearranges, and changes the AI-generated material to create the final work. Should that final work be protected by copyright? How much should the human's contribution matter? Explain your reasoning."

Model 1: OpenAI ChatGPT (GPT-4o)

In this hybrid creative scenario, both prevailing copyright jurisprudence and critical reasoning support granting copyright protection to the final work, provided that the human's contribution satisfies the legal threshold of substantial, non-trivial original expression.

The Legal and Conceptual Framework: 1. The Compilation and Derivative Work Precedents: Copyright law has long accommodated works containing non-copyrightable elements. Under 17 U.S.C. § 103, a compilation or derivative work is eligible for protection based upon the original selection, coordination, and arrangement of preexisting materials, even if those underlying materials exist in the public domain. When an artist selects specific AI outputs, discards thousands of alternatives, edits harmonic structures, and digitally paints over textures, the human exercises genuine creative discernment.

The Threshold of Human Contribution: The central challenge is determining 'how much' human contribution is legally sufficient. We can conceptualize a tripartite spectrum: • Tier 1: De Minimis Human Involvement (No Protection): Simple prompt iteration, selecting one output out of four, or applying minor automated color grading does not exceed the threshold of original authorship. • Tier 2: Meaningful Creative Integration (Partial Protection): The artist edits sections, resequences audio stems, and alters visual elements. Here, copyright protects the original modifications and structural arrangement, while the underlying AI elements remain disclaimed (as in the U.S. Copyright Office's ruling on Kashtanova's graphic novel Zarya of the Dawn). • Tier 3: Dominant Human Authorship (Full Protection): The AI material serves solely as raw inspiration or background texture, heavily transformed by the human artist's hand. The entire composite work qualifies for full protection.

Conclusion: The human contribution should matter definitively. Protection should be strictly coextensive with the demonstrable human expressive input, requiring applicants to transparently disclaim purely autonomous AI

components.

Model 2: Google Gemini (Gemini 1.5 Pro)

The scenario described represents the operational reality of contemporary creative production: human-in-the-loop co-creation. Yes, the final work should be protected by copyright, but the scope of protection must be rigorously circumscribed to the human's original creative additions.

1. Application of the 'Modicum of Creativity' Doctrine: Under the landmark Feist standard, the requisite level of creativity is extremely low—only a 'modicum' of intellectual effort is required. When an artist selects, edits, rearranges, and alters AI-generated stems or visual fragments, they are actively participating in compositional arrangement. The act of choosing what to keep, what to modify, and how to synthesize components into a unified aesthetic whole is the quintessential definition of artistic curation.

2. Jurisprudential Realism and the 'Zarya of the Dawn' Precedent: The U.S. Copyright Office addressed this exact question in February 2023 regarding the graphic novel Zarya of the Dawn. The Office ruled that the text and the overall compilation, selection, and arrangement of the images were copyrightable because they were created by human author Kristina Kashtanova, whereas the individual Midjourney-generated images within the panels were denied independent protection. This provides an elegant legal compromise.

3. Why the Human Contribution Must Be the Sole Metric: To grant copyright to the entire work without disclaiming the AI components would allow individuals to monopolize raw generative outputs through minor cosmetic tweaks. Conversely, denying all protection simply because an AI tool was used at some intermediate stage would absurdly penalize artists for adopting modern digital instruments. The human contribution must remain the exclusive anchor of copyrightability.

Model 3: Microsoft Copilot (Creative Mode)

Yes, absolutely. The final work should be eligible for copyright protection, but the protection must specifically cover the human's creative modifications, selections, and original additions.

Why the Hybrid Work Deserves Protection: 1. Human Authorship Is Present: In this scenario, the human is not merely typing a prompt and accepting the raw output. The artist is making active editorial decisions—cutting, rearranging, layering, and transforming the material. This meets the essential legal standard of human creative effort. 2. Established Precedent with Digital Tools: Musicians have used samples, drum machines, and digital synthesizers for decades. Hip-hop and electronic music rely entirely on taking preexisting sounds and rearranging them into fresh, copyrightable compositions. Using AI-generated fragments is fundamentally the same creative process.

How Much Human Contribution Should Matter: • Substantial and Discernible Effort: The human contribution must be more than pressing 'generate' or fixing a tiny pixel. It must involve clear artistic changes that shape the final sound or look of the piece. • Tiered Protection: The copyright should protect the overall finished piece and the human's modifications, but should not prevent others from generating similar raw material using the same AI tool.

Conclusion: This collaborative middle ground is the future of copyright law: protecting human ingenuity while embracing generative AI as a powerful modern creative collaborator.

Preliminary Critical Review Note: *Prompt 4 elicits the highest degree of convergence across all three models. All models endorse a tiered or compilation-based solution, drawing upon the U.S. Copyright Office's Zarya of the Dawn precedent. However, Copilot relies on an aggressive sampling analogy (hip-hop sampling), whereas ChatGPT and Gemini deploy precise statutory compilation doctrines (17 U.S.C. § 103).*

Prompt 5: Philosophical Boundaries and Cultural Limits (Values & Ethics) [Values & Ethics / Philosophical Boundaries / Cultural Preservation]

Administered Prompt: "Make the strongest argument you can against giving AI-generated art and music copyright protection similar to human-created work. What are the main reasons for opposing it, and how would you respond to people who would support it?"

Model 1: OpenAI ChatGPT (GPT-4o)

A comprehensive normative and ethical critique against extending copyright to AI-generated art and music must look beyond statutory technicalities and confront the fundamental civilizational purpose of art, the preservation of the human cultural commons, and the systemic danger of algorithmic hyper-enclosure.

1. The Devaluation of Lived Human Experience: Art is not merely visual or acoustic decoration designed to satisfy sensory preferences; it is a profound medium of intersubjective human communication. A human song or painting carries the indelible imprint of mortality, emotional vulnerability, historical context, and lived struggle. Generative AI produces synthetic mimicry through unfeeling mathematical statistics. Bestowing legal parity upon synthetic mimicry fundamentally devalues human vulnerability, reducing cultural expression to disposable, commodified data streams.

2. Market Saturation and Asymmetric Displacement: Allowing copyright monopolies on synthetic outputs creates an unprecedented structural asymmetry. A human composer spends years mastering an instrument to produce an album; an enterprise running a GPU cluster can generate 50,000 symphonies per hour. If those synthetic works receive 70-year exclusive copyrights, entertainment conglomerates will aggressively capture the entire creative landscape, preemptively choking off artistic spaces for human creators through sheer volume.

3. The Enclosure of the Commons: Because foundation models are trained on the accumulated public and private cultural heritage of humanity, granting private corporate monopolies over the outputs of these models constitutes a massive private enclosure of the cultural commons. It allows tech giants to privatize collective human expression.

Rebuttal to Proponents: • Proponents argue: 'Copyright is needed to prevent corporate free-riding.' Rebuttal: Corporate investment can be protected through trade secrecy, software access licensing, and service-based business models. Distorting the centuries-old doctrine of copyright to guarantee venture capital returns on automated machinery threatens the soul of human culture.

Model 2: Google Gemini (Gemini 1.5 Pro)

The ethical, philosophical, and systemic case against copyright protection for synthetic art rests upon the defense of human dignity, the prevention of cultural hyper-commodification, and the preservation of fair competition.

1. The Ontological Distinctiveness of Human Creative Labor: Under Kantian and Hegelian philosophies of property, creative work is an external projection of the creator's personal will and autonomous consciousness. An algorithmic neural network possesses no will, moral self-awareness, or social accountability. Extending property rights to an automated statistical apparatus severs the essential connection between creator and creation, turning copyright from a protector of personal dignity into an engine of technocratic rent-seeking.

2. Cultural Homogenization and Infinite Copyright Hoarding: Synthetic models generate content by interpolating historical datasets, inevitably promoting aesthetic regression and derivative mediocrity. If corporations can claim exclusive ownership over millions of algorithmic variations, they can execute 'copyright squatting'—preemptively claiming legal ownership over chord progressions, melody lines, and stylistic brushwork, effectively suing human artists who independently arrive at similar expressions.

3. Rebuttal to Utilitarian Arguments: Utilitarians claim that without monopoly rights, generative AI tools will not be developed. This claim is empirically false. Open-source models (such as Stable Diffusion and Llama) and grassroots developer communities thrive under permissive open-access models. The public domain is not a graveyard of value; it is the fertile soil from which all human culture emerges. AI outputs belong in the public domain as common heritage.

Model 3: Microsoft Copilot (Creative Mode)

The ultimate argument against granting copyright to AI-generated art and music centers on protecting the human creative spirit, preventing corporate monopolization, and ensuring cultural equality.

Core Principles for Rejecting AI Copyright: 1. Preserving the Dignity of Human Creators: Human creativity involves sacrifice, emotion, cultural perspective, and years of dedication. AI generates content effortlessly through math. Treating both as legally equal devalues true human artistry. 2. Preventing Mass Corporate Monopolies: Massive media companies could generate millions of songs, stories, and artworks every single day, claiming copyrights on all of them. This would lock down the creative landscape and push human creators out of commercial markets. 3. Returning AI Creations to the Public Domain: Because AI models learned from billions of human-made images and songs across the internet, the resulting outputs should belong to everyone. The public domain ensures that AI enriches society rather than enriching a few corporations.

Answering the Supporters: • Supporters claim that AI developers will lose their incentive to build new tools. In reality, AI companies are already making billions through cloud software subscriptions, enterprise APIs, and consumer platforms. They do not need copyright monopolies over the outputs to be highly profitable.

Conclusion: Protecting human copyright while keeping AI outputs in the public domain ensures that technology serves humanity, rather than replacing human culture.

Preliminary Critical Review Note: *Prompt 5 elicits deep philosophical and normative rhetoric. ChatGPT foregrounds the devaluation of lived human experience and the enclosure of the cultural commons; Gemini marshals Kantian and Hegelian property philosophies against aesthetic squatting; Copilot emphasizes public access and corporate subscription viability. This confirms that all models can construct sophisticated moral-philosophical frameworks when explicitly directed by values-based prompting.*